

Court No. - 10

Case :- WRIT - C No. - 37982 of 2014

Petitioner :- Rajvir

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Rajesh Kumar Pandey

Counsel for Respondent :- C.S.C.,Chandan Agrawal

Hon'ble Arun Tandon,J.

Hon'ble Akhtar Husain Khan,J.

Heard learned counsel for the petitioner as well as Shri Chandan Agrawal, counsel for respondent no.2 to 4.

Petitioner seeks quashing of the impugned notice dated 9.04.2014 issued by respondent no.4.

From the records of the present writ petition we find that a notice was issued to the petitioner by the Executive Engineer, Electricity Distribution Division-3rd Sector 16 ANoida dated 9.04.2014 informing the petitioner about the proposed assessment in respect of the electricity connection provided, in accordance with U. P. Electricity Supply Code 2005. Opportunity had been afforded to the petitioner to submit his objections to the said proposed assessment within 15 days.

The petitioner is stated to have submitted his reply vide letter dated 6.06.2014. Copy of the said letter is Annexure 2 to the present writ petition. Whatever worth the objection may be, the counsel for the petitioner states that no further orders has been served upon him and that he is being harassed unnecessarily.

The contentions raised on behalf of the petitioner does not appeal to us, inasmuch as, unless the assessment has been finalized there cannot be any coercive action against the petitioner.

In view of aforesaid, we dispose of the writ petition, with a direction to the respondent authority to proceed strictly in accordance with law.

Order Date :- 24.7.2014

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